

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
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United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Mara Ellison's Response Opposing a Mandate Stay — Denial Path

Filed July 17, 2026

Mara Ellison asks the Court to deny Officer Nolan Rusk's motion to stay the mandate. The June 30 opinion applied settled qualified-immunity rules to an unusually complete set of assumed facts. Rusk identifies no split, no unsettled federal rule, and no concrete reason that the district court cannot resume ordinary proceedings while he decides whether to petition for certiorari.

The panel already honored the collateral boundary by dismissing Rusk's challenge to evidence sufficiency. The remaining holding assumes that Ellison merely recoiled and pulled, committed no crime, had no weapon, did not strike or reach, and presented no immediate danger when Rusk used a five-second drive stun and forced her down. A proposed petition must retain those assumptions.

Estate of Armstrong v. Village of Pinehurst furnished particular notice for later officers: electrical force against nonviolent resistance during a protective mental-health seizure requires an immediate safety risk. Rusk's distinctions concern degree, not the existence of that governing rule. The panel's application does not conflict with *Zorn v. Linton*, which involved a warned wristlock during deliberate resistance and could not retroactively diminish circuit notice already fixed in 2025.

Rule 41(d) requires both a substantial question and good cause. Rusk establishes neither.

I. The Proposed Question Is Fact-Bound

Rusk frames the case around one cycle instead of five, movement instead of stationarity, and incomplete control instead of completed handcuffing. Those details matter to reasonableness, but they do not present a broad disagreement about the qualified-immunity standard. The panel compared the facts to circuit holdings and concluded that *Armstrong's* prospective warning encompassed this smaller but wholly unjustified use.

No court of appeals has rejected the legal rule applied below. Rusk cites no decision holding that an officer may administer one electrical pain cycle to a nondangerous mental-health subject solely because she pulls from a painful grasp. Nor does he identify disagreement about whether a later case can guide decisional methodology without serving as historical notice.

The asserted importance to training cannot substitute for a certiorari-worthy conflict. Every force case involves circumstances that officers and departments may study. Supreme Court review remains unlikely when the question is whether a published circuit precedent was sufficiently similar to a fictionalized factual sequence within that same circuit.

The clean assumed-facts posture simplifies this Court's work but does not create national significance. The petition would ask the Supreme Court to recompare *Armstrong*, *Yates*, *Meyers*, and *Smith* with one event. That is ordinary error correction, and Rusk has not shown an error. A speculative plan to raise it does not meet Rule 41(d)'s substantial-question threshold.

II. Zorn Does Not Undermine Armstrong

Zorn requires fair notice at a high degree of factual specificity. The panel applied that instruction. It did not rely on a rule as broad as “excessive force is forbidden.” It used precedent addressing a conducted-energy weapon, drive-stun operation, a mental-health seizure, physical but nonviolent resistance, several officers, and an absence of immediate danger.

The force in *Zorn* was a rear wristlock used to lift a protester who planned to refuse departure, linked arms, remained after warnings of arrest, and repeatedly declined to stand. The Supreme Court found no earlier holding that such a routine control technique violated the Fourth Amendment. Ellison neither committed trespass nor planned resistance, and Rusk used an electrical device after one direction while she reported pain.

Most important, *Zorn* was decided in 2026. It controls the clarity with which courts articulate the notice inquiry, but it cannot delete a rule this Court expressly announced for future officers in 2016. The panel recognized that temporal separation and read *Armstrong* at a concrete level.

Rusk's proposed petition would turn specificity into exact identity. It would require a prior case involving a single cycle rather than several, an arm pull rather than a fixed-object hold, and the same seconds-before-handcuffing posture. Qualified immunity does not require such a duplicate when the earlier decision makes the decisive relationship—electrical force and immediate safety risk—clear.

III. No Good Cause Justifies Delay

Rusk points to the burdens of trial, but the collateral appeal has already provided the review designed to protect that interest. The panel considered the legal defense and rejected it on assumed facts. Every losing immunity appellant could repeat the same burden argument; Rule 41(d) demands a case-specific reason for withholding the mandate during contemplated Supreme Court proceedings.

There is no set trial date. The district judge can conduct a status conference, resolve evidentiary motions, and choose a schedule that accounts for any certiorari filing. Ordinary case management is not irreparable harm. Rusk remains free to seek appropriate relief if the Supreme Court grants review or if a concrete scheduling conflict later arises.

Delay harms Ellison. Her claim concerns a February 2025 encounter, discovery is complete, and factual witnesses' memories will not improve. She has already defended an interlocutory appeal without obtaining a merits trial. A ninety-day stay, potentially extended through certiorari disposition, would add uncertainty based only on counsel's present intention to seek authorization.

The absence of a monetary judgment does not make delay costless. Qualified immunity balances official protection through legal review against a plaintiff's right to proceed after immunity is lawfully denied. The June 30 judgment completed that review. Rusk has not shown that maintaining circuit control of the case serves a purpose beyond postponing the next ordinary stage.

IV. The Motion's Procedural Assurances Are Insufficient

Rusk promises to notify the clerk if he files a petition, obtains an extension, or abandons review. Those are appropriate assurances if a stay is otherwise justified, but they do not establish entitlement. Rule 41(d)(2) defines what happens after a grant; it does not lower the initial substantial-question and good-cause requirements.

A ninety-day period is especially unwarranted because Rusk has not attached a draft petition, identified Supreme Court counsel, or described an authorization date. Ellison does not contend that each item is mandatory. Their absence reinforces that the request is preliminary and that the stated petition may never be filed.

No bond would compensate for lost time or fading recollection, so the security discussion does not cure the problem. If the Court were nevertheless inclined to grant a short stay, it should require a firm early notice date, automatic dissolution upon abandonment, and prompt issuance rather than an open-ended administrative gap.

The pending motion temporarily prevents the ordinary July 21 release while the Court decides it. If the motion is denied, Rule 41(b) ordinarily points to seven days after denial, unless the panel expressly shortens or extends that interval. Ellison asks the Court to exercise its authority to restore the original July 21 issuance date because the motion was filed after rehearing time expired and presents no substantial basis for further delay.

V. Requested Disposition

The Court should deny the mandate-stay motion. The proposed petition asks for case-specific reconsideration of circuit precedent, and Rusk has not shown a reasonable prospect that the Supreme Court will take that question. His generalized concern about litigation burdens does not constitute good cause after full collateral review.

Ellison further asks the panel to direct issuance on July 21, 2026, the date the mandate would have issued absent the motion. Federal Rule of Appellate Procedure 41(b) authorizes the Court to shorten the post-denial interval by order. A clear date would prevent uncertainty and return the case only after the original rehearing-plus-seven-day period has fully elapsed.

Such a direction would not punish Rusk for filing a stay motion or restrict his ability to seek Supreme Court relief. It would recognize that the filing paused the clerk's calculation while pending but did not establish a right to an additional automatic week once the request failed. Rusk could present any emergency application to the proper court under governing procedures.

Counsel certifies electronic filing and service on July 17, 2026. This response relies on the existing record and published authorities; it adds no evidence about the hidden encounter. Ellison preserves her position that a jury, rather than an appellate court, must resolve those facts after remand.

The motion should be denied, the post-denial interval expressly shortened, and the mandate scheduled for July 21.